Concord Community Schools

USE OF FORCE AND CORPORAL PUNISHMENT IN THE COURSE OF STAFF SUPERVISION OF STUDENTS

po5630 **ADOPTED** June 1, 1998 **REVISED** April 22, 2013

5630 - **USE OF FORCE AND CORPORAL PUNISHMENT IN THE COURSE OF STAFF SUPERVISION OF STUDENTS**

The Limited Use of Force

The Board recognizes that there are likely to be occasions in which a staff member must use limited physical force in the supervision of students in order to:

A. prevent a student from injuring him/herself or others including self-defense and the defense of others by a staff member;

B. stop a student from damaging the property of the Board or others; or

C. end the disruption of an educational function or prevent interference with a school activity.

In these circumstances, the staff member shall use no more force than the force that is necessary to accomplish the objective of the use of force and shall not use force for the purpose of deterring or punishing misconduct.

Corporal Punishment

As used here, "corporal punishment means the intentional infliction of mild temporary physical discomfort on a student for the purpose of addressing misconduct." Corporal punishment shall not be used by the Board's employees.

The Superintendent shall establish guidelines for the administration of corporal punishment.

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Legal
I.C. 20-26-5-4
I.C. 20-33-8-8 to 11
Ingraham v. Wright, 430 U.S. 651 (1977)
State v. Fettig, 884 N.E. 2d 341 (Ind. App. 2008)
Barocas V. State, 949 N.E. 1256 (Ind. App. 2011)
Littleton v. State, 954 N.E. 2d 1070 (Ind. App. 2011)